

TENTATIVE RULING:

Plaintiff Mihaela Crossman dismissed this case without prejudice on March 3, 2026. This CMC is vacated. Line 15 is vacated. No appearance is required at the hearing on March 11, 2026.

3. 9:00 AM CASE NUMBER: C25-00711

CASE NAME: ROBERT MURLEY VS. ROBERT RICHIE

***CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC is continued to August 3, 2026 at 8:30 a.m. No appearance is required on March 11, 2026.

Law & Motion

4. 9:00 AM CASE NUMBER: C23-00908

CASE NAME: ABDO NASSER VS. DOES 1 TO 50

***HEARING ON MOTION IN RE: LEAVE TO FILE CROSS-COMPLAINT**

FILED BY: T-MOBILE USA, INC.

TENTATIVE RULING:

Summary

Defendant T-Mobile USA, Inc. and T-Mobile West LLC's ("T-Mobile") Motion for Leave to File Cross-Complaint filed on December 4, 2025 is unopposed and is **granted** as set forth herein. No appearance is required at the hearing on March 11, 2026.

Defendant MW Cell REIT 1 LLC ("MWC") filed a notice of Non-Opposition. Plaintiff Abdo Nasser ("Plaintiff") did not file a timely opposition.

Analysis

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court finds that failure of any party to timely oppose this motion is a deemed to be their consent to the granting of this motion.

Ruling

1. T-Mobile's Motion for Leave to file Cross-Complaint against MWC and Plaintiff is **granted**.
2. The Court approves the form of the Proposed order lodged on November 21, 2025, with the following modification: The proposed complaint submitted as Exhibited M to the Declaration